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Innovation and Precedent: a procedural reappraisal of the 1625 Parliament

THE parliamentary politics of the 1620s bred innovation as King and Commons strove to find ways of circumventing problems and expediting business in unpropitious circumstances. Novel usages were introduced in 1621 to forward legislation and protect a session, but they were re-used throughout the decade because they enabled the Lower House to formulate procedural positions from which it later proved extremely reluctant to withdraw. Adduced as rightful privileges, these advances were intended to restrain the Crown whenever a monarch's indigence, especially in war time, pre-disposed him to accept them. As such they represented an encroachment on the royal prerogative. The transition from one reign to another merely accelerated the process. In 1625 Charles I's need to honour his financial obligations to European allies impelled him to propose and approve departures from traditional practice. By discussing these novelties in the context of a single Parliament it should be possible to assess the political implications of the Commons' procedural objectives. A major purpose of this article is to elucidate both the reasons for and the results of such action.

Some of the more striking advances in parliamentary procedure during the 1620s remain largely unrecorded by historians who have sought to assess these problems. They have either tended to neglect the constitutional implications of new developments or drawn excessively strong inferences from a Parliament's routine processes.¹ Notestein reviewed the work of Commons' committees and read into their changing form, expanded personnel and spawning progeny reasons 'why the leadership of the Commons passed from Privy Councillors to the Country Party'. When members fully controlled the conduct of business they were in a position to effect dramatic changes in their relations with Lords and king:

So long as the Commons were a ratifying body, with the right to occasional refusal, their interference with government would be at best slight. Once they were in charge of the initiation, formulation, and passage of laws, once they had caught the reins of policy and began to drive, there was no saying where they might draw up.²

1. Wallace Notestein, 'The Winning of the Initiative by the House of Commons', *Proceedings of the British Academy*, xi (1924), 3-53; Sheila Lambert, 'The Clerks and Records of the House of Commons', *Bulletin of the Institute of Historical Research*, xliii (1970), 215-27; *id.*, 'Procedure in the House of Commons in the early Stuart Period', *ante*, xcv (1980), 752-81.

2. Notestein, 'Winning of the Initiative', pp. 52-3.

Current appraisals have challenged older perspectives. Dr Lambert has recently contended that 'the amount of procedural development which took place in the early seventeenth century has been exaggerated, and that in any case procedural developments do not have constitutional significance'. Since her investigations are limited to committees, work on bills, Commons' rules and orders, the Speaker's role and the usefulness of official records, this view may be justified.¹ However, when adjournments, prorogations, and the gamut of prescriptive usages that constitute the king's parliamentary prerogatives are considered, a fresh assessment is badly needed. If procedure is fairly assumed to incorporate these items then the Commons' general aim of increasing their freedom from royal control in the 1620s is possessed of direct constitutional significance.

* * * * *

Elizabethan Parliaments elaborated a pattern of ceremonial and practical usages deemed requisite by those participating in the legislative process. With their attachment to traditional forms, members appreciated the abiding permanent features of a session. Its beginning, duration, and closure adhered largely to secure and predictable schedules. A dissolution terminated a parliamentary sitting and also ended an assembly's life, whereas a prorogation simply killed a session. Both procedures were exclusively royal instruments of control, and their enforcement followed the monarch's assent to bills, which usually signified the session's close.² However Tudor Parliaments also witnessed the occasional separation of the royal assent from either a subsequent prorogation or dissolution, and in 1621 members expressed some uncertainty as to the immediate sequence of these events.³ By comparison, adjournments acted as recesses of varied length which might interrupt the progress of a session but not finalize its proceedings. Their serviceability lay in safeguarding unfinished legislation throughout a recess, whereas a prorogation ensured that incomplete bills were lost until the next session, when the entire legislative process had to be repeated.⁴ For twenty days after the end of a session prorogations secured members' legal immunities from all civil suits and also from criminal prosecutions not involving matters of treason, felony, or breach of the peace. However adjournments also protected these sessional liberties throughout an entire recess, irrespective of its length.⁵ John Glanville, in February 1621, drew

1. Lambert, 'Procedure in the House of Commons', p. 753.

2. Elizabeth R. Foster, *The House of Lords 1603-1649. Structure, Procedure, and the Nature of its Business* (North Carolina, 1983), pp. 205-6.

3. Wallace Notestein, Frances H. Relf, Hartley Simpson, eds., [*Commons*] *Debates 1621* (New Haven, 1935), iv. 37; vi. 133; *C[ommons] J[ournal]*, i. 544; [*The*] *Statutes [of the Realm]* (London, 1810-28), iii. 857-8.

4. Foster, pp. 23, 205.

5. *Ibid.*, pp. 140-1.

key distinctions between differing types of intermission. He attributed to the Commons a power to 'adjourn of ourselves for a while which seldom is above a fortnight or thereabouts, but if it be a proroging, the session ends for that time, and that is to be done by his Majesty'.¹ In effect both Houses adjourned themselves from day to day, and they usually concurred in exercising a degree of independence, within the broad latitude of royal permission, when fixing the time and length of recesses for customary feasts and holidays: Christmas and New Year, Easter and Whitsuntide. However there are no recorded instances of either House arrogating to itself, and then enforcing over a lengthy interval, a unilateral right of adjournment.

Until 1584 the monarch's handling of adjournments was largely unexceptional. In this year two innovations occurred. A winter recess was extended from 21 December to 4 February, 1584–5, a period almost coterminous with the Hilary term, and the Queen implemented this decision by delegating royal authority to named Commissioners in her absence.² The use of a formal Commission under the Great Seal, supplemented by Letters Patent, excited some curiosity and a little apprehension among the Commons. William Fitzwilliam, a parliamentary diarist, recorded the concern felt by several members.

This was thought strange, for as it had been used heretofore that the two houses by consent for a week in Christmas or at Shrovetide have adjourned the parliament: so was it never seen that so long a vacation as six weeks was had without the presence of the prince's person.³

The next Parliament witnessed successive adjournments of a longer span, and the second of these, from 2 December to 15 February 1586–7, was commissioned in identical fashion to that of December 1584. Extraordinary circumstances attending Mary Queen of Scots' imminent trial and execution prompted the further implementing of this procedural device. However, from then until the end of her reign Elizabeth dispensed with such novelties.⁴

A prevailing mistrust of royal intentions characterized parliamentary politics throughout the Early Stuart period. The product of later Elizabethan assemblies, it surfaced dramatically in 1604 when the Commons' *Form of an Apology and Satisfaction* took James to task for his political misdemeanours and staked Parliament's claim to judicial pre-eminence through a defiant defence of

1. *Debates 1621*, vi. 358.

2. J. E. Neale, *Elizabeth I and her Parliaments 1584–1601* (London, 1965), p. 43.

3. Trinity College Dublin, MS 1045, fo. 80; Northamptonshire Record Office, Fitzwilliam MSS, ii. fo. 26; Sir Simonds D'Ewes, *A Complete Journal of the votes, speeches, and debates, both of the House of Lords and the House of Commons throughout the whole reign of Queen Elizabeth* (London, 1693), p. 345.

4. Neale, p. 133.

members' privileges. Professor Elton has depreciated the *Apology's* political importance by demonstrating its incomplete and unofficial character. A final draft was reported to the House, at the end of June, but disagreement among members led to its recommittal and disappearance at least a week before Parliament's prorogation on 7 July.¹ However these strictures cannot be accepted without question. Many members would surely have found a vigorous defence of privilege not only congenial but necessary in the parliamentary context of 1604. If the *Apology's* central provisions, attacking Convocation, ecclesiastical canons, purveyance and wardship, accurately reflected majority opinion in the Commons, then it appears likely that the document's timing, the political repercussions of an inopportune presentation, rather than its contents, alarmed the House.² Whatever the reasons for its disappearance in committee, James's penchant for following Salisbury's counsels of moderation until 1610 did little to soften the impress of these initial suspicions. Their potency was to be immeasurably strengthened by the King's handling of his next Parliament. In response to members' apprehension at the danger of 'undertaking' and their intransigence displayed over impositions, James annihilated the assembly of 1614 and cast it into legal oblivion.³ His actions bore fruit seven years later when the Commons' inveterate mistrust ensured that procedural wrangles and issues of privilege dominated a year-long Parliament. They wished to obtain the session's continuance in March 1621, to safeguard prospective statutes, but feared that the customary association of legislative enactments, in this case two bills for the clerical and temporal subsidies, with the advent of Easter, would encourage James to implement his prerogative and either prorogue or dissolve the sitting. To avoid this fate the Lower House, at William Noy's suggestion, attached a proviso to both bills which disclaimed for the royal assent a right of ending the assembly's proceedings and discounted these statutes for sessional purposes.⁴ By imposing a temporary limitation on the king's untrammelled authority in parliamentary matters, and gaining James's consent to the restriction being placed in statute, the Commons created a precedent that could usefully be re-applied at some future date. A discretionary prerogative glossed for present purposes in statute was *in esse* a diminished prerogative.

At Easter a recess was secured by James conceding to the Commons alone the fashioning of a long adjournment during which

1. H[istorical] M[anuscripts] C[ommission], Salisbury MSS, xxiii, *Addenda*, 1562–1605 (London, 1973), 140–52; G. R. Elton, 'A High Road to Civil War?' in *Studies in Tudor and Stuart Politics and Government: Papers and Reviews, 1946–1972*, ii: *Parliament/Political Thought* (Cambridge, 1974), pp. 164–182.

2. HMC, Salisbury MSS, xxiii, 140–52.

3. HMC, Hastings MSS, iv (London, 1947), 283.

4. P[ublic] R[ecord] O[ffice], S[tate] P[apers] 46/65, fo. 141.

committees of the House processed many important bills. Members shared the implementing of this concession with the Lords as a visible token of their desire to keep a 'good correspondency' between the Houses.¹ Such a delegation of authority was consistent with the king's policy of following in Parliament's wake as it initiated punitive investigations into a system of concessionary privilege that spawned the notorious monopolies of Mompesson and Michell. A guilt-ridden appreciation of his flawed trusteeship impelled him to permit both Houses to co-operate in resurrecting lapsed powers of indictment against public malefactors and restoring Parliament's judicial supremacy among the law courts of the realm.² On 4 June another adjournment, a uniquely-long recess of five and a half months, was substituted for a customary prorogation, and a session that began in January was prolonged into the autumn. This decision, the outcome of protracted disputes between king and Commons over forms of discontinuance, was forced on James by members' refusal to accept any alternatives. He proffered a statute that would have abrogated the Crown's sole right to end a session after the enactment of legislation, but this was eventually discarded when the Lower House reluctantly abandoned bills. The King then attempted to vindicate from Elizabethan precedent his right to commission an adjournment in which all sessional work would cease after Parliament's recess. Unfortunately he was badly served by legal counsel. His precedent was successfully repudiated by the Commons, who proved that in December 1584, after the Queen had commissioned an adjournment, a committee was appointed by the Lower House to sit throughout the winter months and review temporary laws. Heartened by this discovery some members tried unavailingly to secure the appointment of standing committees and continue parliamentary work during the long intermission. Finally they defended an independent ordering of their own recess by citing the example of Easter, as evidence of this prescriptive privilege, and castigating all commissioned adjournments as late novelties and unwarranted extensions of the royal prerogative. Although the Upper House recessed by authority of James's commission, the Commons refused to recognize the validity of this royal instrument and asserted a customary freedom to adjourn themselves.³

Debates in late May and early June focused on important aspects of parliamentary procedure. James unwittingly stimulated this

1. N. E. McClure (ed.), *The Letters of John Chamberlain* (Philadelphia, 1939), ii. 354; *CJ*, i. 563, 567.

2. Robert Zaller, *The Parliament of 1621: A Study in Constitutional Conflict* (California, Los Angeles, 1971), pp. 37–87.

3. *CJ*, i. 629–30, 633–4, 639; *Debates 1621*, iv. 397–8; William Hakewill stated that 'divers Gentlemen were appointed as a Committee . . . to consider of the Penal Laws', when in fact this committee met to deal with the laws held on continuance. Nevertheless the Crown's contention that no such body had met was successfully refuted. *Debates 1621*, iv. 400; Trinity College Dublin, MS 1045, fo. 80.

examination by comparing the merits and demerits of adjournments and prorogations. Prompted by the King members proceeded to extend and apply his definitions to their best advantage. An adjournment's safeguarding of both a session and unfinished legislation was appreciated in March. The protection it now offered to members' cherished immunities from legal harassment, during an inordinately-long intermission, heightened their appreciation of its serviceability. From June 1621 an adjournment became the Commons' favoured instrument to advance legislation, defend privilege, and prolong Parliament's existence.¹ They also attempted to define the relationship of sessions to Parliaments, and claimed to find in legislation the common denominator that imparted constitutional authenticity to both.² A session was characterized by the passing of bills, but the King's use of his discretionary prerogative was felt increasingly to endanger the law-making process. This belief was largely responsible for the novelty of March 1621. A further sign of mistrust was displayed by the Commons on 24 May and during the critical months of November and December. After the Whitsun adjournment Sir Robert Phelips proposed a procedural novelty whereby 'we may pass a short act that we may find all bills the next session . . . in the same estate that we leave them . . .'. His exact intention remains unclear. Either Phelips feared that James would prorogue the assembly before any bills were ready for enactment or he was merely concerned to safeguard incomplete legislation at the session's demise, whenever that event occurred. In effect both courses of action demanded that a future prorogation be supplemented by a statute giving legislative expression to an adjournment's peculiar properties. John Pym and Christopher Brooke reiterated this formula to overcome similar difficulties in the autumn.³ Nothing came of these suggestions. An obstinate defence of privilege by the Lower House, coupled with its failure to process legislation, provoked James to dissolve the assembly in February 1622. Unfortunately a traditional dissolution would not suffice to resolve the procedural and legislative complications attendant on the King's hasty enforcement of his prerogative. Parliaments were comprised of sessions, whose authenticity was determined by the enactment of legislation. Since two subsidy bills had received the royal assent in March 1621, thus creating a session, all temporary laws, and the authority deriving from their existence, were now endangered. Continued from February 1611, by James's annihilation of the 1614 assembly, their statutory renewal fell due in 1621. However the mutual antagonism of King and Commons in

1. *CJ*, i. 634–5, 636; *Debates 1621*, ii. 609; for the purpose of members' protection an adjournment's length was immaterial. William Noy's dictum, delivered on 1 June 1621, was held to cover most contingencies: '*Maius et minus non variant speciem*.' *Ibid.*, v. 193.

2. *Debates 1621*, iv. 396–7.

3. *Ibid.*, ii. 384; iii. 294; *CJ*, i. 647, 664.

December precluded such an eventuality. Thus James resorted to the unique formula of naming this assembly a Convention and explicitly disclaiming its sessional qualities.¹

* * * * *

Sir Thomas Crew, Speaker of the Commons in 1624, designated this assembly a *parlementum pium, doctum et foelix*.² Historians have been inclined to accept his benediction while reserving judgment on the degree of co-operation emanating from its counsels. At least until its closing weeks the 1624 Parliament remained the purposive creation of Prince and Duke, a product of the reversionary interest. With pleasing and popular policies they elicited the Commons' financial assistance and wary co-operation, an affiliation that largely withstood James's unwillingness to remain consistently pliable throughout the session. Many prominent spokesmen, who had previously undergone varying forms of restraint for their parliamentary activities in 1621, were compacted to the Prince's programme of renouncing the Madrid Treaties of 1623, entering into an unspecified form of aggression against Spain, persecuting recusants and passing good laws. They were prepared to overlook James's earlier transgressions and explore the possibility of co-operating with his son in a reversal of foreign policy. Not that older misgivings were assuaged by the new and heady aspirations of Charles and Buckingham for rapprochement and conciliation. Their change of attitude was a little too sudden to dissolve a powerful residuum of mistrust engendered by the favourite's nefarious activities in 1621. The success of these tactics failed to remove an underlying tension that fed on the evident signs of a divided Court, a series of disturbing discrepancies in the public pronouncements of Prince, Duke, and King. Elements of co-operation and mistrust characterized the months from February to May and members' fears were appreciably sharpened towards the session's close when James's latent hostility to the Commons' handling of parliament business impelled him to re-establish control of his Court and government.³

A revenue bill, the hub and nexus of this Parliament, provided James with three subsidies and three fifteenths for named items of expenditure. However members completely ignored the king's debts and they sought to repudiate the Palatinate as a funded *casus belli*.⁴ Even the appearance of better laws than those passed by

1. J. R. Tanner, ed., *Constitutional Documents of the Reign of James I 1603-1625 with an historical commentary* (Cambridge, 1930), p. 295; John Chamberlain observed that James was advised by the judges 'that the two last subsidies could not lawfully be collected, without a session, and if this meeting should pass for a session, a number of good laws would fall to the ground for lack of continuance, which was a matter of great consequence.' McClure, ii. 418.

2. L[ords] J[ournal], iii. 212.

3. Robert E. Ruigh, *The Parliament of 1624. Politics and Foreign Policy* (Harvard, 1971), pp. 149-256.

4. *Ibid.*, pp. 255-6, 385, 387.

any recent assembly mainly elicited expressions of relief at their ultimate enactment.¹ This reassurance was simultaneously undermined by James's display of testy disdain for the Commons' achievement and his introducing an unseemly and even ominous note of personal dissatisfaction into the prorogation proceedings on 29 May. Members departed 'with much more discontent and fear of the success of this Parliament, than we came together at the beginning with hope of good and happy prosecution, for by this conclusion, we apparently found that the King was bent to run the ends of his own will, both for matter of government by Proclamation, Patent and Commission . . .'.²

* * * * *

Between 1623 and 1625 Charles and Buckingham prepared remorselessly for war against Spain despite royal opposition and contrary diplomatic advice. An unpopular and politically inopportune French marriage for the Prince was negotiated in the mistaken assumption that such a union would coincide with a military league between the two countries aimed at preventing a Habsburg hegemony in Europe. Even Richelieu's refusal to engage in outright hostilities did not deflect them from prosecuting their primary objective.³ Parliament's provision of three subsidies and three fifteenths, £253,139 12s. 2d., in all, was manifestly inadequate to fund even the bill's appropriated expenditures let alone sustain Buckingham's grandiose scheme of restoring the Elector Frederick to his patrimony. But then the skeletal apparatus of appropriation, accountability and supply hinged on the granting of consecutive and more realistic subsidies in later sessions of what the Prince and Duke felt would be a long Parliament. Commons' debates in 1624 had reflected members' tepid recognition of a need to freshen the original gift with supplementary donatives whose size and regularity might well attenuate customary distinctions drawn between voluntary grants and perpetual levies. This initial commitment encouraged Charles and Buckingham to believe in their ability to rely on permanent and constitutionally impeccable sources of finance, freely granted by a pledged Commons. Between April 1624 and May 1625 the Crown's contractual obligations to European allies amounted to a yearly outlay of £725,000, exclusive of naval disbursements. At his accession Charles faced the task of honouring these engagements with money he did not possess and for whose

1. C[alendar of] S[tate] P[apers], D[omestic], 1623-1625, p. 257.

2. PRO, SP 14/165, fo. 61.

3. Roger Lockyer, *Buckingham. The Life and Political Career of George Villiers, First Duke of Buckingham 1592-1628* (London, 1981), pp. 199-201, 203-5, 216-17, 222-42; Ruigh, pp. 38-9; S. R. Gardiner, *History of England from the Accession of James I to the Outbreak of the Civil War 1603-1642* (London, 1883), v. 249-63, 266-7, 286.

provision further parliamentary grants were urgently required.¹

If the obstacle of James's rooted opposition to war against Spain was removed by his death, neither Prince nor Duke was ready to take immediate advantage of this unexpected occurrence. Both men realized the damaging domestic repercussions that would ensue if the Commons were allowed to interfere with advanced but incomplete negotiations for an unpopular French marriage. During these difficult and protracted arrangements Charles and James broke verbal commitments, delivered to the 1624 Parliament, that a future dynastic union would not entail conceding toleration to English Catholics.² For this reason Parliament's recall had been successively postponed, and after James's death in March 1625 early elections for a new assembly were followed by a series of seemingly capricious prorogations, implemented to accommodate the marriage treaty's completion.³ Unfortunately the attendant period of waiting, between April and June, forced members to jeopardize their financial and physical well-being by undergoing an unnecessary sojourn in a costly and plague-ridden capital.⁴ Their subsequent disgruntlement deepened earlier suspicions that the former subsidy bill's statutory provisions for a strict accountability between treasurers and councillors-at-war were accorded scant regard by those who formulated royal policy. Mansfeldt's fiasco, prolonged throughout the winter and spring of 1624-5, also rendered the Crown vulnerable to charges of culpable negligence and financial waste. These were mistakes that earned for Buckingham much of his later odium and occasioned doubts whether Charles's executive capacities were sufficient to bear the brunt of fully-fledged kingship.⁵

Such aspersions could only be strengthened by the new monarch's inconsiderate actions. At first he displayed a distaste for any delay that postponed Parliament's early meeting, a penchant that accorded ill with his post-election deferring of its eventual assembly. Inconvenient constitutional conventions irked him beyond measure. Either he and Buckingham were unaware of the accepted provision for an assembly's automatic demise on the death

1. Ruigh, p. 387; Gardiner, v. 222-3, 244, 298-9, 323, 336.

2. *LJ*, iii. 318; PRO, SP 14/177, fos. 25, 29, 37, 39; B[ritish] L[ibrary], Harleian MSS 4596, fo. 144.

3. James F. Larkin and Paul V. Hughes, eds., *Stuart Royal Proclamations*, i. *Royal Proclamations of King James I, 1603-1625* (Oxford, 1973), pp. 606-7, 608-9, 617-18, 633; *LJ*, iii. 432-4; *Calendar of State Papers*, V[enetian], 1623-1625, p. 574; writing to Lord Nithsdale, in October 1624, Buckingham justified a further prorogation by reasoning that 'the respect of the Princess of France, and reverence which will be given to her person when here . . . will not only stay the exorbitant and ungente notions that might otherwise be made in the House of Parliament, but will facilitate in the King's proceedings those passages of favour, grace and goodness which the King hath promised for the ease of the Roman Catholics.' Gardiner, v. 264n.

4. *CSPV*, 1625-1626, pp. 62-3; McClure, ii. 618, 622.

5. Gardiner, v. 271-2, 281-90, 335.

of a reigning monarch or they considered it an expendable restraint to be overridden in the interests of retaining a co-operative Commons. Their original plan to reconvene a second session of James's last Parliament was frustrated by Lord Keeper Williams who incurred Charles's displeasure by reminding him of unpalatable constraints on his prerogative.¹ The new King also intended foregoing the distraction and expense of a coronation until he had satisfactorily concluded a short parliamentary meeting. His decision perplexed sticklers for constitutional rectitude, although Pesaro, the new Venetian ambassador, possibly exaggerated the extent of their alarm.

Men talk of the possibility of the King not being crowned, so as to remain more absolute, avoiding the obligation to swear to the laws. . . . The Parliament men would wish for this observance, as without it they would consider their laws at the discretion of the King and not dependent on the general public authority . . .²

Nevertheless a regrettable lapse in propriety was felt by some English observers to detract from Parliament's capacity to make law.

The Parliament holds, but thought not above some twenty days, and that to settle the house, and devise some allowable and parliamentary way (though not in the nature of a subsidy for defect of the coronation) to supply present necessities of our warlike preparation. Yet some talk of a parliamentary contribution, if not in the full nature, yet in the name of a benevolence, which may be agreed upon without a session or royal assent, as not having the nature of a compulsive statute.³

On Saturday 18 June Charles opened proceedings. His address from the throne limned in brief outline the Commons' prior engagement to support a royal enterprise of regaining the Palatinate. Reciprocal obligations bound all parliamentarians to follow a predetermined course dictated by past decisions. He particularly emphasized his own unequivocal self-constraint.

I cannot say I came hither a free unengaged Man. I came willingly, freely, like a young Man, and consequently rashly; but it was your Entreaties, your Engagements, . . . I pray you remember that, this being my first action . . .⁴

1. John Hacket, *Scrinia Reserata: A Memorial Offered to the Great Deservings of John Williams, D.D.* (London, 1693), ii. 4; Charles's ignorance is less excusable when the propinquity of precedent is observed. Mary's last Parliament was automatically dissolved by her death on 17 November, 1558. Sir F. M. Powicke and E. B. Fryde (eds.), *Handbook of British Chronology* (London, 1961), p. 536.

2. *CSPV*, 1625–1626, p. 51.

3. R. F. Williams (ed.), *The Court and Times of Charles I; illustrated by authentic and confidential letters from various public and private collections* (London, 1848), i. 21; it was further observed, on 18 June, that Charles delivered his address from the throne, to members of both Houses, 'with the crown on his head (though as yet uncrowned) . . .'. Henry Ellis (ed.), *Original Letters Illustrative of English History . . . with Notes and Illustrations* (London, 1824), iii. 202.

4. Unfortunately this month witnessed the law term's official adjournment because of the

In emphasizing this commitment the King contravened an important convention whereby every assembly was regarded as free and entire, in, of, and to itself. No such body could bind its successor nor was its independence limited by a predecessor's achievements. Yet if Charles laboured under a prior commitment, by implication Parliament's freedom of action was similarly circumscribed. It too was allotted a predetermined schedule whose implementation allowed the monarch a large degree of latitude in ordering his commitment to the Crown's best advantage. The early initiatives of King and Duke clearly illustrated their belief that constitutional restraints possessed diminished significance when set against the supervening need to preserve intact the intentions and momentum of a preceding legislature. Charles failed to appreciate the singularity and autonomy of his first Parliament, viewing its activities as representing a mere sessional extension of his father's last assembly.

He also encouraged the Commons to break with routine practice, in the matter of finance, and follow the precedent of March 1621. His urgent affairs demanded that redress of grievances follow a consideration of supply. The King wished members 'to bestow this Meeting on him, or rather on these actions; and the next shall be theirs, as long and as soon as they will for domestic business.'¹ The same urgency justified a cavalier attitude taken to customary forms of parliamentary grant. Again Charles was willing to innovate, and the Lord Keeper intimated that 'if subsidies be thought too long and laboured, His Majesty desires to hear, and not to propound the manner thereof.'² Royal intentions were uncomplicated and clear. Appreciating the dangers of tarrying in a plague-stricken capital, the King envisaged a short meeting in which the Lower House would honour its financial engagements of 1624 and prepare a lapsed bill of tonnage and poundage for present or future enactment. With the passage of several innocuous laws a form of lengthy intermission could then be fashioned that best suited the Commons' convenience. Parliament would then reassemble late in Michaelmas term.³

Some members certainly wished to accommodate the King but did not relish a long stay at Westminster. Others, perhaps a majority, regretted their conditional engagement and remained obdurately opposed to funding a costly war. They much preferred to implement a short programme of good laws, largely the detritus of 1624, safeguard religion, demand an account of moneys spent, seek

plague. Such a drastic step facilitated an exodus from Westminster of those members of the legal fraternity who remained untouched by the demands of parliamentary attendance. Conrad Russell, *Parliaments and English Politics 1621-1629* (Oxford, 1979), p. 213; *LJ*, iii. 435, 436.

1. *Ibid.*, 436.

2. *Ibid.*, 436.

3. Russell, p. 217.

an official answer to grievances unsatisfactorily handled by James, and uphold their liberties. A small number wished to end present deliberations, secure an immediate and lengthy adjournment, and then return to session with plague gone and Charles's several concerns either successfully promoted or abandoned through lack of funds. Among the last-named, William Mallory, on 21 June, proposed the sending of a Commons' petition for adjournment to the King. He wished for proceedings to be discontinued until late in the Michaelmas term. His initiative, though collusively supported by Sir Robert Phelips and Sir Thomas Wentworth, was widely regarded as presumptuous and constituting a gross affront to a new untried monarch.¹ The blatant innovation of proposing the House's instant adjournment also appeared offensive to many members who still preferred to follow a settled routine. Even a short meeting might accomplish something and no chance of forwarding legislation should be lost. Some individuals had travelled long distances to attend Parliament, 'coming from the remotest parts of the Kingdom, and for the most part all of them having lain in town since the first summons.' It would be gratuitously insulting if this meeting 'should presently . . . dissolve to no purpose without doing anything.'² Mallory's proposal, if successful, would either have effected an immediate parliamentary adjournment or, more probably, have provoked an early confrontation with King and Lords. A prominent participant in the privilege disputes of 1621, he can only have regarded his motion as eligible for adoption by its affinity to the precedent of a long adjournment fashioned in that assembly. It is barely conceivable if considered apart from this recent novelty. The propriety of an individual member promoting what before had been resolved by the collective agreement of both Houses and the King, now appeared to Mallory and his supporters entirely reasonable in the abnormal circumstances of June 1625.

By rejecting this initiative members decided reluctantly to enter into parliamentary business. However they were more concerned to resolve outstanding matters from the previous assembly than to entertain new problems. Several bills spurned or deferred by James at his prorogation in May 1624 were intended for enactment before the recess. New and more important legislation could receive only preliminary consideration during a short meeting. Unfortunately the Commons strayed from this sensible agenda and indulged their religious prejudices at the King's expense. Suspicions of Charles's recent dynastic affiliations primed the search for a religious solution to England's current misfortunes.³ Sir Edward Coke professed

1. *Ibid.*, p. 220; *CJ*, i. 800; S. R. Gardiner (ed.), *Debates [of the House of Commons in] 1625* (Camden Society, n.s. vi, London, 1873), 7–8.

2. *Debates 1625*, pp. 8n–9n.

3. Russell, pp. 229–33.

'to begin with God' and he instanced the abomination of a Spanish match, narrowly averted in 1623, and by implication the French marriage, as rendering long overdue the deity's present propitiation. Only an act of atonement would prevent a repetition of Mansfeldt's recent fiasco. His call to spiritual arms envisaged parliamentary action by bill and petition to depress recusancy in its hopes of a present toleration, prosecute the previous assembly's plan to purge Catholics from all offices of trust and legislate the eradication of the Church's worst abuses.¹ Despite the pressing need to eschew time-wasting practices, the Commons spent over a week assembling a documentary indictment of Catholic aims that would *pari passu* suggest ways and means of reinvigorating the Church of England. Sir Edwin Sandys and John Pym were virtually entrusted with drafting this petition, although lay impropriations and other contingent abuses were reserved for specific enactment.² A degree of religious mistrust, unprecedented since 1605, also impelled many members to debate at length Richard Montagu's doctrinal expositions and castigate his defiance of Parliament's authority. In late June the Commons' petition for Catholic repression became inextricably entangled with an irresolute seeking after the cleric's precise form of misdemeanour. This fruitless distraction ended with Charles appointing Montague a royal chaplain and then claiming protection for his servant from the harassment to which the House had subjected him.³

From the outset members recognized the necessity of accommodating the King's urgent desire for supply. If they wished to obtain the reciprocal benefits of legislation and an early recess, fashioned to their own convenience, it would be manifestly imprudent to ignore royal needs. On 30 June Charles was voted two subsidies, a sum deliberately dissociated from any form of war finance and given 'as the first fruits of the springing love of his subjects'. This grant was accompanied by speeches in which a prior engagement to subsidise royal belligerence was explicitly denied. The King's opening pronouncement had misrepresented Parliament's position. As yet members knew of no war nor was an enemy named.⁴ Charles was adroitly outmanoeuvred as his father had been in February 1621.⁵ By means of an inadequate un-

1. *CJ*, i. 800-1; McClure, ii. 626.

2. Russell, pp. 229-33; Clerical fears were aroused by the knowledge that 'they [the Commons] talk of divers bills in the Parliament House; as against the Universities, Pluralities of Benefices, concerning the disposition of Prebends to such as want other preferment, and mending of Vicarages out of the Impropriations; . . .'. Ellis, iii. 206.

3. McClure, ii. 626; Sir John Eliot, *N[egotium] P[osterorum]*, ed. Alexander B. Grosart (London, 1881), i. 13-15; *Debates 1625*, pp. 26, 33-5, 47-53, 62.

4. *LJ*, iii. 436; Russell, p. 224; *NP*, i. 68-9, 75; *Debates 1625*, pp. 30-33.

5. Robert Zaller, 'The Concept of Opposition in Early Stuart England', *Albion*, xii (1980), 226.

reciprocated grant the Commons could now claim to have met the King's literal requirements. In effect they neatly circumvented, if they did not practically reverse, his naïve prospectus. From transparently political motives the Lower House set its face against identifying Parliament with, let alone funding, the Crown's military entanglements. If an adjournment was presumed by King and Commons to be the most suitable form of intermission, members could hereafter spurn further royal attempts to increase the yield as presumptuous and procedurally unfitting. It was customary practice not to vote two separate grants of supply in one session and even consecutive demands within a Parliament were criticized in 1610.¹ Another request, either at Michaelmas or during the winter months of 1625–6, could now be aspersed as an unseemly break with convention. Sir Thomas Wentworth outlined a prospective agenda for the Commons in a second meeting, but he was solely concerned with 'finding an estate' for the Crown and he certainly did not envisage the King's further remuneration by an additional grant of supply.² This sentiment reflected a growing realization, among some members, that to adopt a blinkered and uncooperative attitude to the monarchy's genuine fiscal weakness might lead Charles to exploit his regality in ways deemed detrimental to their best interests. However the Commons evinced no disinterested concern in 1625 for the King's wasted inheritance. They sought a solution to their longstanding grievance over impositions and the pretermitted customs in the Crown's need to obtain a renewed statutory authority for its traditional customs revenue.³

Parliament customarily enacted a bill of tonnage and poundage in the first session of a new reign. From 1461 Charles's predecessors had enjoyed a quasi-patrimonial right to collect enumerated tariffs for life. Nevertheless these duties were not to be confused with hereditary taxes whose parliamentary origins, through prescription, were reduced to mere niceties of manner and form. The conditional nature of such aid was real enough, and members had not been averse, in 1604, from pointedly stressing this reciprocity. They

1. Elizabeth R. Foster, ed., *Proceedings in Parliament, 1610* (Yale, 1966), ii. 30, 336; S. R. Gardiner, ed., *Parliamentary Debates in 1610*, Camden Society (London, 1862), lxxxii. 9.

2. *Debates 1625*, p. 33; this appraisal refutes a recent statement by Dr G. L. Harriss that 'the subsidy granted in 1625 was merely the traditional accession tax: . . .'. James received no such supply in 1604 and his tentative request for a grant was baldly refused by the Lower House. Dr Peck makes no mention of any customary donative. 'At the beginning of almost every reign a Parliament was held to recognize the new monarch's title, establish a point of contact between the King and his people, and vote the King the customs duties of tonnage and poundage.' In 1625 members simply repeated the tactic of February 1621 and Buckingham's later designation of the gift as their testimony of welcome to a new monarch, badly misread the Commons' intentions. G. L. Harriss, 'Medieval Doctrines in the Debates on Supply, 1610–1629', in *Faction and Parliament. Essays on Early Stuart History*, ed. K. Sharpe (Oxford, 1978), p. 95; HMC, *Salisbury MSS*, xvi. 132; Linda L. Peck, *Northampton: Patronage and Policy at the Court of James I* (London, 1982), p. 169; *Debates 1625*, p. 99.

3. *Ibid.*, p. 12.

explicitly entitled it 'an Act of Subsidy of Tonnage and Poundage', thereby highlighting its voluntary character. For this remuneration 'the Commons trust and have confidence the King will defend the seas against those disturbing our trade, invading the realm, to our molestation, unquieting, and loss.' Subsidies were therefore granted to enable the Crown to discharge its burdensome responsibility to protect the nation's merchant marine. Their contractual basis was not likely to be overlooked at a time of intense trading rivalry with the Dutch and of piratical incursions on English coastal shipping by European privateers and North African corsairs.¹ The previous statute had also defined tonnage and poundage as 'certain sums of money named Subsidies of all manner of goods and merchandize.'² To Sir Robert Phelps this wording now appeared ominously inexact and a positive encouragement for the Crown sedulously to attach discretionary customs revenues to the royal fisc. When a compromise was reached, in early July, whereby Charles was voted his traditional duties for twelve months, Phelps advised that a proviso be placed in the text of this temporary bill, 'that nothing in this Act may be pressed against us, for maintenance of impositions.' Members then agreed to prepare a more complex and comprehensive measure, incorporating impositions, the pretermitted customs and a new book of rates.³ This general bill would permanently reconstitute and possibly increase Charles's traditional revenues. It possessed the added advantage of placing them under the aegis of parliamentary authority and thus removing a number of arbitrary tariffs from prerogative control. The temporary bill failed to pass both Houses before the recess and its successor's detailed provisions were intended for the work of a second meeting. Both items complemented inadequate subsidies to ensure that if Charles desired a statutory warrant for his customs revenues, and remained strapped for cash, he would either have to keep this Parliament in being or promptly summon its successor. Nevertheless Professor Russell sees no reason for imputing ulterior

1. *Statutes*, IV, ii. 1062; on 3 July 1610, Thomas Wentworth, member for Oxford, clarified the mutual benefit expected from such a grant. In the debate on impositions he simply asserted that 'the subsidy of tonnage and poundage [was] given to [the] King for liberty of trade and seafaring without stay at [the] ports by customers or others.' Foster, ii. 249; *CJ*, i. 803; *Debates 1625*, p. 43; Russell, pp. 215 and n., 227; *NP*, ii. 3-4.

2. *Statutes*, IV, ii. 1062; In April 1624 Sir Robert Heath incautiously admitted that the act of 1604 was so worded as to justify the levying of impositions. C. Russell, 'Parliamentary History in Perspective, 1604-1629', *History*, lxi (1976), 9.

3. *CJ*, i. 803; Russell, pp. 227-8; Dr Ball contends that 'those who had remained aloof from the war fever of 1624 were easily able to seize the initiative in restricting the grant of new subsidies to two, in limiting the traditionally lifetime offer of Tonnage and Poundage to one year only, and in pursuing religious grievances.' This statement, and the author's subsequent analysis of the Commons' leadership in 1625, apparently ignores Phelps's prominence in both assemblies; J. N. Ball, 'Sir John Eliot and Parliament, 1624-1629', in *Faction and Parliament*, pp. 177, 179; *Debates 1625*, pp. 7, 22, 31, 43, 80, 109, 118, 124, 127; Gardiner, v. 432.

motives to the Commons. He considers it entirely appropriate that Phelips, Coke, Sandys, Sir Francis Seymour, *et alii*, should have attempted to resolve outstanding grievances by statutorily fashioning an expansion of royal customs revenue. Such an innovation would prove completely acceptable to a King who, having 'no objection to Parliaments . . . , would not have rejected a secure revenue because it came by Parliamentary authority.' Indeed the Commons' purposes could be squared with their earlier predisposition to 'regulate the revenues of the Crown that they might hereafter bear some part of the public charge'.¹

Yet the dangers of such a settlement are clearly apparent. These arrangements might intolerably constrain the king's intrinsic right to create new sources of revenue and exploit fully traditional areas of profit, especially at a time of national emergency. In such circumstances his discretionary prerogative, the kernel of royal authority, would be far more seriously weakened by statute than by the later provisions of the Petition of Right. Would the new law retain important features of the old act? If no opportunity was afforded King and Parliament to renew its provisions on Charles's death, he might bear the odium of having burdened his successors with an invidious contract. Alternatively, if the Crown struck a bad bargain, would the Commons be content, in any renegotiation of terms, simply to adjust pre-existing levels of financial support? A larger contribution, incorporating the feudal incidents and residual areas of royal patrimony, might transform the nature of English kingship from a prerogative to a parliamentary monarchy. Equally significant is the novel initiative displayed by the Commons to effect a wider financial settlement than a statutory regulation of tonnage and poundage, in contrast to the reluctance and suspicion with which they entertained Salisbury's proposals for the Great Contract.

* * * * *

By the end of June members appreciated the present monarch's temperamental disinclination to bind himself to irksome parliamentary courses that hindered his ability to wage war. If Charles's penchant for proposing and accepting departures from traditional practice could be manipulated over subsidies, then the impending recess provided a greater opportunity for the Commons to protect and frame a session to their own liking. The King had already intimated his desire for a flexible approach to parliamentary intermissions. His pledge to allow members a large discretion in determining the form, manner and timing of Parliament's recess, an almost identical concession to that granted by James in March 1621, was upheld on 4 July when he communicated, through the Lords, a readiness to consider the meeting's imminent foreclosure.

1. Russell, pp. 227-9.

In reply the Lower House resolved 'to agree upon a time, to be intimated to the King, for our recess; and for the manner of it, whether by adjournment, or with a Session, and a Bill, to continue all things *in statu quo*.'¹ These alternatives were culled from members' readiness to innovate in 1621 and 1624.² A prorogued session, secured by statute, would allow unfinished bills to be completed rapidly whenever Parliament was recalled. This intermingling of the properties of adjournments and prorogations would advance the Houses' capacity to enact good laws by anticipating future problems. A Michaelmas session, possibly held in the shadow of war, was a parlous context in which to forward legislation against the King's natural predilection for additional supply. Yet this course of action, 'a Session, and a bill', was spurned by a majority of members. On 5 July a first reading was given to a measure disclaiming for the prerogative any power of determining a session once the royal assent was given to bills. A statutory adjournment was preferred to a statutory prorogation.³ Since most members desired the session's continuance, but also wished to produce interim legislation, as in March 1621, this affinity prompted them to consider Noy's proviso and James's identical offer in late May of that year.⁴ Furthermore any form of prorogation might jeopardize temporary laws whose life-span automatically ended without their prolongation by a complicated statute whose completion would take more time and effort than members could presently afford. A recess also possessed definite procedural advantages for the Commons. Although Charles's assent to this measure would statutorily commit him to continue the session, at Parliament's recall the weight of convention could be cited against the Lower House complying with any further request for supply. More than a grain of self-interest entered into these calculations. If the session ended in July, members' virtual freedom from arrest at private suit would lapse twenty days after its demise. Such a limited protection appeared manifestly less attractive than the pleasing guarantees provided by the adjournment of 4 June 1621.

Nevertheless a defence of members' privileges, the preservation of temporary acts, a safeguard against further requests for supply and mistrust of the King, in themselves provide too expedient an explanation of the Commons' actions. Fundamentally they claimed that legislation defined a session and legislative enactments tradi-

1. *LJ*, iii. 453; *CJ*, i. 802.

2. On 29 April 1624 individual members proposed 'to have a Committee chosen to draw a bill, to make all Bills, that pass not this session, to remain in the State they Should be left in, next Session'. This procedural novelty was rendered unnecessary because James was disinclined to lose good laws, including the subsidy bill, by ending the session in early May. *CJ*, i. 779.

3. At Oxford John Glanville referred to the statute as 'the Bill of Adjournment'. *Debates 1625*, p. 114.

4. PRO, SP 46/65, fo. 141; *CJ*, i. 629-30, 633-4, 636-7, 639.

tionally presaged a use of the royal prerogative to conclude parliamentary proceedings. Obversely, a prorogued or dissolved assembly that produced no laws lacked the essential attributes of a session. It was statutes, and statutes alone, that imparted sessional authenticity to a parliamentary meeting. This assertion prompted their actions in February and March 1621 when lawyer-members sought to prove, from Plantagenet and Tudor precedents, the unexceptional nature of early laws and the session's continuance. Their failure to provide the House with unequivocal guarantees ensured that two subsidy bills were methodically discounted for sessional purposes by Noy's saving proviso.¹ An Easter adjournment then followed in which members were able to process unfinished legislation that they feared might have been lost if no safeguard had appeared in the preceding statutes to prevent an untimely prorogation. In May and June 1621, when it seemed likely that agreement between King and Commons would produce an adjournment with bills, several members seriously entertained the notion of passing a unique act that would guarantee the session's continuance. James quickly adopted this idea and introduced to the Lords a bill to ensure 'that this Session shall not determine by the King's Royal Assent to some bills.' Unfortunately his belated initiative was taken after the Lower House decided to abandon legislation in favour of a 'free' adjournment.² However, in July 1625 the Commons were committed to securing interim laws, obtaining a long adjournment and protecting incomplete bills by continuing the session. The simultaneous pursuit of these objectives necessitated an adoption of the novelty spurned in May and June 1621. Members conceived of early enactments as prejudicing the session's extension by mere adjournment, and they sought a legal means of depriving these laws of what they considered to be their procedural function.

Sir Edward Coke reasoned otherwise when he later reflected on the nature of Parliament in *The Fourth Part of the Institutes of the Laws of England*. He observed that 'the passing of any bill or bills by giving the royal assent thereunto, or the giving any judgment in Parliament, doth not make a session, but the session doth continue until that session be prorogued or dissolved; and this is evident by many precedents in Parliament, ancient and late.'³ His claim for legal judgments against public malefactors to be accorded an equal validity with legislative enactments represents a private opinion and

1. PRO, SP 46/65, fo. 141; *Debates 1621*, ii. 177; *CJ*, i. 544; John Chamberlain ascribed the Commons' actions in May and June 1621 to their belief that laws defined a session. PRO, SP 14/121, fo. 29.

2. *CJ*, i. 633-4.

3. Sir Edward Coke, *The Fourth Part of the Institutes of the Laws of England* (London, 1809), p. 26; also cited in W. J. Jones, *Politics and the Bench. The Judges and the Origins of the English Civil War* (London, 1971), p. 159.

one shared by few of his contemporaries.¹ Likewise, a confident avowal of ancient precedents to justify the Commons' proceedings is wholly inconsistent with members' deliberate use of innovatory techniques to reinforce adjournments in 1621 and 1625. If this form of intermission, accompanied by legislation, was widely appreciated as constituting routine practice why did they seek its statutory protection? The Commons' belief that laws defined a session has been sufficiently stressed. Coke himself opined that 'when a Parliament is called and doth sit, and is dissolved without any act of Parliament passed, or judgment given, it is no session of Parliament.' He also avowed that 'every several session of Parliament is in law a several Parliament . . .'.² A prorogation's function in eliminating unfinished bills exemplified the latter maxim, by ensuring that no session was beholden to a predecessor's legislative work. Its independence was characterized by laws begun and finished within its own compass, and their successful enactment presaged a use of the royal prerogative to prorogue the assembly. This practical demonstration of the integral relation of bills to a session confirmed members' trust in the validity of their parliamentary definitions and impelled them to provide for the statutory protection of an impending recess in July 1625. Yet not everyone agreed with this manner of proceeding. Before the 'bill of adjournment' passed the Commons its proponents had to overcome the vigorous opposition of those in the House who denied the public benefits to be derived from a measure that threatened to reproduce the worst excesses of 1621. At that time members' privileges were maintained for over five months at the expense of their constituents' freedom to seek redress at law. A group of members led by John Glanville, Henry Rolle, and like-minded colleagues, therefore wished to propitiate the electorate with the trappings of a formal session and supplement subsidies with several laws, a general pardon, and the statutory protection of unfinished legislation.³ Their resistance was unsuccessful and this unique bill was transmitted to the Lords on 8 July to be duly enacted with six accompanying statutes three days later.⁴

1. Sir Thomas Wentworth and Sir Benjamin Rudyard supported this view in 1621 but both men were guilty of special pleading in attempting to justify to constituents their failure to pass good laws. J. P. Cooper (ed.), *Sir Thomas Wentworth's Papers, 1597-1628* (Camden Society, 4th Ser. xii, 1973), 155; *Debates 1621*, iv, 391.

2. Coke, p. 27; Jones, p. 159.

3. *CJ*, i, 804; *Debates 1625*, p. 55.

4. *LJ*, iii, 461; what the Lords thought of this unique measure must remain a matter for conjecture. Although they expressed doubts 'whether the law would intend any priority if the Royal assent and the adjournment should be both in a day', no dissent was recorded. Only an innocuous verbal amendment on another matter was proposed, which the Commons immediately accepted, and the bill then enjoyed an untroubled passage through the Upper House. *Debates 1625*, p. 65; *CJ*, i, 807.

What were the bill's exact provisions? A resolution, 'to take away all doubt, whether the King's royal consent to one or more Acts of Parliament will not be a determination of this present session', supplemented more urgent needs. The House wished to consider 'many and weighty businesses, which in the present Parliament have been begun, most whereof yet depend unfinished' and were awaiting their full and mature deliberation at some future date. A *non obstante* clause was introduced to cover present statutes. It disclaimed for sessional purposes '... any such assent to such Bills or to this present Act'. Unfinished legislation would 'remain and continue in the same state and plight as they are, or shall be on the day of adjournment'. Completed bills, enacted at the recess, would be enforced forty days after the adjournment, 'notwithstanding that by words or letter of the said Acts, they be limited to take effect or be executed, from, or at any time after the end of this present Session.'¹ Members preferred to avoid the gross inconvenience that would ensue if these acts were rendered legally unenforceable until the assembly was either prorogued or dissolved at some distant date. By implementing their provisions during a session's continuance, and not after its close, they displayed a public concern to repudiate customary time-limits attached to previous statutes. These acts could now no longer be seen as a culmination of the Houses' work, nor did they represent the ending of members' sessional commitments. A 'tack' or proviso safeguarded all temporary laws and its precise wording was designed to prevent the alarming repercussions of an untimely dissolution, such as occurred in January 1622, from being repeated in 1625.² It stipulated that 'if this Session be determined by the dissolution of this Parliament then all Acts be continued until the end of the first session of the next Parliament.'³ The proviso replaced an earlier attempt, on 6 July, to pass a traditional bill. A danger had then arisen that the statutory adjournment might succumb to the attack of those who feared that its provisions would abuse parliamentary privilege, and who therefore preferred some form of prorogation. Had the Commons discontinued work on the measure, expiring laws would be at risk if either the session was ended or if Charles exploited the opportunity of an adjournment, unsecured by statute, to dissolve the assembly. An expiring laws continuance act was rushed through three readings and engrossed on 6 July, but this necessarily

1. *Statutes*, v. 21–2.

2. Tanner, p. 295; Jones, pp. 80–1.

3. *Statutes*, v. 22; The editors of the *Commons Debates 1628* err when they claim that a short bill to continue temporary acts was passed in July 1625. Misled by an abbreviated allusion in *Debates 1625* to 'An Act for the continuance', they apparently failed to recognize a reference to the statute for continuing the session. Robert C. Johnson, Mary Frear Keeler, Maija Janssen Cole and William B. Bidwell (eds.), *Commons Debates 1628* (New Haven, 1978), iv. 199n.; *Debates 1625*, p. 68.

foreshortened bill, perhaps little longer than the subsequent proviso, was not needed. The following day opposition to a statutory adjournment was defeated. Nevertheless a short attachment was deemed worthy of inclusion, possibly as a safeguard against the distinct threat of unfavourable political circumstances attending Parliament's recall to session in the late autumn.¹

Apart from the likelihood of Charles having entered into hostilities against Spain, a temporary bill of tonnage and poundage remained to be processed whenever the House reassembled. The King was bound to resent, as a grave imputation on his probity and competence, any attempt to deprive him of traditional revenues when he was desperately in need of extraordinary finance. Though ostensibly beneficial, the Commons' current proposals to secure for Charles a constant revenue from a re-fashioned bill, can barely have seemed appropriate to the present emergency. For its part, the Lower House would regard a temporary act's early passage, in a second meeting, as the necessary precondition of any proceeding towards a more comprehensive financial settlement. In these circumstances a fruitless confrontation, akin to December 1621, might occur with similarly damaging repercussions. Even the return of members who left Westminster once the subsidies were voted on 30 June would not ensure a trouble-free assembly at the end of the year. Those who remained behind in July, braving the plague, represented the Commons' leadership, an active minority that could hardly be expected to acquiesce in the repudiation of their hazardous work. Political opportunism and sound tactical sense informed the actions of those who framed this unique bill. After 1 July, with two subsidies voted, attendance in the Commons rapidly dwindled and it was no more than a rump who first propounded and then processed a statutory adjournment.² Their efforts ensured the session's continuance and protected members' immunity from legal actions more effectively than in the 1621 assembly. Of greater importance, Charles's discretionary prerogative was now constrained by statute. The Commons successfully inserted Parliament's authority where before no further warrant for royal action was needed than the king's will. In so doing they reinforced and extended the innovation of 1621. Charles's desperate need for finance impelled him to tolerate and even encourage a distinct encroachment on his regal powers, and one that temporarily curtailed the independent use of his parliamentary prerogative. Whether he appreciated the danger of such a concession is another matter. Until his request for a Commons' pledge of additional subsidies was rejected on 8 July, the King raised no objections to the Lower House proceeding with the measure and

1. *CJ*, i. 804.

2. *NP*, i. 92-3.

he may even have appreciated its worth as the necessary prelude to a long adjournment. Indeed Solicitor Heath's intervention on the 6th, to prevent the bill being overborne by the advocates of a prorogation, may have been prompted by a royal concern that its procedural advantages to King and Commons should not be lost. Nevertheless, once enacted, it would need a high-handed use of the king's prerogative, amounting to a virtual repudiation of his statutory undertaking, or the implementing of an unseemly stratagem, to disappoint the Commons in their hopes of a very long intermission. Such untoward developments could only adversely affect Charles's expectations of further financial provision from the Lower House.

Having legislated the sitting's extension and invoked parliamentary convention to squash a second request for subsidies, members successfully repulsed another threat to their privileges on 11 July. Of immediate concern to the Commons was their avoidance of any association with a commissioned adjournment. Indeed William Strode's motion, on the 9th, envisaged the Lower House alone requesting Charles 'for his license to depart on Monday morning, according to the King's intimation'. It was Sir Robert Heath who quickly countered this unicameral approach by insisting on a prior conference with the Lords, that both Houses together might petition the King for an imminent recess.¹ The Commons preferred 11 July as the time of Parliament's intermission, and on this date members received a deputation of the peers' legal counsel who informed them of the Lords receiving two commissions under the Great Seal with Letters Patent, delegating the king's assent to bills and implementing an adjournment. They were formally requested to attend the reading of these royal warrants.² A brief but sharp debate ensued during which the House reaffirmed its former defence of 'free' adjournments. Members fully appreciated the danger of lending their physical presence and mute approval to what they regarded as an unwarranted extension of royal authority. They possessed an 'interest in that point, which having always been their sole act and work, in admitting it by commission from the King, it was then thought an innovation of the right, which might induce a precedent against them, and so retrench their liberty for the future'. Procedural differences were then observed 'between adjournment and prorogation, as prorogation and dissolution have their odds. That the two latter, in their kinds were in the prerogative of the King, the adjournment only in the privilege of the House.'³ With this resolution Sir Edward Coke was immediately dispatched to deliver the House's response, fashioned as a ready

1. *CJ*, i. 807.

2. *LJ*, iii. 464; *CJ*, i. 808; *Debates 1625*, p. 67.

3. *NP*, i. 122.

compliance with the Lords' request to attend a reading of the King's assent to bills. However he warned them not to expect members' presence at the delivery of a commissioned adjournment. For their part the peers 'consented to send down the Commission hither after they read it there, to the end that we might adjourn our own House here.'¹ Whether they misconceived the Commons' intention to avoid contact with any form of royal warrant or merely regarded the document's transmission as a necessary but politically innocuous procedure, the precise wording of their resolution implied a slighting disregard for the Lower House's stated position on the matter of adjournments. Members subsequently withdrew after the King's temporizing answer to their petition of religion was delivered and the Lord Keeper communicated the alarming news that Parliament would reassemble at Oxford on 1 August.² An adjournment, suddenly reduced from months to weeks, undermined the efficacy of a bill for continuing the session on which valuable time was spent at Westminster. It also shattered the Commons' belief in a lengthy intermission and rendered baseless the settled conviction that underpinned their actions in June and July. In an atmosphere of shock and resentment they refused to read or even open the commission of adjournment sent them by the Lords, and 'as their own act . . . pronounced it by the Speaker, that the House adjourned itself . . .'.³

* * * * *

Some members travelled to Oxford in time for Parliament's reassembly, others arrived late, and a number, in all probability, refused to hazard their own or the country's health by attending an unseemly continuance of the Westminster session. Low attendance had constituted perhaps the most striking feature of the first meeting. This phenomenon has been already remarked but it needs to be fully appreciated that the Commons' innovatory actions were the work of a minority. Between two-thirds and three-quarters of the House had departed by early July and Charles's tart reminder of members' negligence elicited an order, moved by Eliot on the 11th, 'that within three days of our next meeting, the House be then called: and the Censure of the House to pass on all as shall then be absent.'⁴ This order was never enforced, although Charles

1. *Debates 1625*, p. 67; *CJ*, i. 808, 809.

2. Neither Eliot's *résumé* of events nor Sir Edward Coke's report to the House on 11 July sustain Professor Russell's view that members knew on the 8th the exact time and place of their reassembly. Russell, pp. 235, 237; *NP*, i. 119, 123-5; *Debates 1625*, pp. 61-2, 66-7.

3. *LJ*, iii. 465; *Debates 1625*, p. 67; *NP*, i. 123-4; *CP*, i. 809; one committee may have met during the July interim. Three judges and the Bishop of Bangor were appointed by the Upper House to resolve a private action transferred by bill from the Court of Requests to the Lords in the 1624 Parliament. *LJ*, iii. 463; if this was indeed the case then James's express injunction, on 31 May 1621, that in the event of a commissioned adjournment no interim committees should meet, would appear to have been forgotten. *CJ*, i. 634.

4. *Ibid.*, 808; Reports differ as to the precise day on which the House was to be called. In

allowed the Commons three days in which to follow their own fancy by delaying his visit to Oxford until 4 August.¹ It appears therefore natural to assume that some members who retired from Westminster after the two subsidies were voted and who relished the prospect of a long adjournment, were surprised at the news of Parliament's recall to Oxford on 1 August. Those living in the remoter shires may not have received this alarming information until some time after the recess, thus leaving them to enjoy only a further fortnight's remission from parliamentary work. They could well be excused for declining the discomfort, inconvenience and physical hazard entailed in making an arduous and lengthy journey to a plague-infected city. So short was the second meeting that news of Charles's precipitate dissolution on 12 August may have pre-empted several agonizing personal decisions as to whether or when to visit Oxford. For those who remained in London and its environs until the adjournment, their domestic sojourn among family and friends would be distressingly brief. Many may have forsaken hearth and home in July to avoid carrying back the parliamentary fruits of plague, and reconciled themselves to a perilous stay in the capital. Circumstances were singularly unfavourable for beginning a period of intense political activity. On Wednesday, 6 July, for the first time within living memory, trading was prohibited in London. The Bartholomew and Stourbridge fairs were forbidden, carriers prevented from visiting the capital, 'nor any citizen may inhabit near any of the King's houses, as Windsor, Weybridge, Hampton, Oatlands, Richmond, Eaton . . .'. People were fearfully aware of the plague's rising toll of human life and social misery. On 30 July London's mortality bills registered 3,583 deaths in one week, of which 2,471 were attributed to the sickness and over a thousand of the remainder ascribed to 'the Invisible Plague'.²

A return to session was therefore occasioned amid portents of alarm and despondency. Although few deaths from plague were recorded in Oxford, during Parliament's second meeting, the magistrates had taken all necessary precautions. Plague orders were strictly enforced in July and only 'Parliament men and men well known' were allowed to enter the city.³ The Commons were

the *Commons Debates 1625*, 'the fourth day of our next meeting' was stipulated. *Debates 1625*, p. 67.

1. For sound political reasons 'there was a proposition made, that in respect it was to be doubted that after the call many would slip away as then secure, it should be deferred till another time . . . the better to hold men here . . .'. In effect only about 160 members attended the Oxford meeting, and in the Upper House the number of bishops almost equalled that of the secular lords. *Debates 1625*, pp. 72, 155; Russell, p. 239n.; *HMC, Rutland MSS*, i (1888), 474.

2. Ellis, iii. 208-9; *Debates 1625*, p. 154.

3. H. E. Salter (ed.), *Oxford Council Acts 1583-1626*, *Oxford Historical Society* (1928), lxxxvii. 331-2.

assigned the Divinity Schools for their deliberations, but ill-provisioned and cramped private quarters in a deserted university city hardly primed a mood of compliance. Charles's time-wasting decision of 11 July now appeared gratuitously insulting. Presentiments of conflict were harboured over the Crown's likely intentions and many members felt that this unfitting summons masked a political design by the Duke to provide for their discomfiture. A whole-hearted disapproval of royal methods was strengthened by Charles's failure at once to state a case for his needs, by pin-pointing priorities of expenditure and broaching supply.¹ Not that less delay and a greater royal sensitivity to the Commons' resentments would have prevailed with a membership preponderantly averse to funding any prolonged hostilities. Between 4 and 10 August, dates on which Charles requested additional subsidies, their intransigence was hardened by Buckingham's disingenuous and quasi-regal defence of his foreign policy.² Debates were easily deflected from supply to a further consideration of the Crown's patrimonial weakness. Suggestions for administrative reform were linked to the possibility of a parliamentary settlement, a form of contract that would gratify both the genuine advocates of a statutory solution to the monarchy's crippled estate and those who simply wished to end the Duke's monopoly of patronage and power.³ After some initial vacillation the Crown repudiated this embryonic programme on the 8th, and Charles's further request for supply, two days later, was denied. Few members were attracted by his conditional promise of another meeting, arranged for the winter months of 1626 and prolonged 'till we have perfected all the things for the Commonwealth and the King which are now in conception'.⁴

Opinions were rapidly being drawn towards finding a plausible pretext for denial and fashioning its suitable expression. Members professed to uphold the hallowed conventions of prescriptive usage. A former grant of two subsidies in July, followed by a statutory adjournment and the session's continuance, ensured that additional requests for supply could be expediently refused as procedurally improper.⁵ Individual attempts to cross the grain of majority opinion met with a cool response. John Mallet decried over-reliance on precedent. While admitting that at Westminster and Oxford it was 'a pinching argument in point against the proposition for supply,

1. Russell, pp. 239–41.

2. *Debates 1625*, pp. 94–102, 106–7, 154–5, 159–60; *CJ*, i. 813; *LJ*, iii. 470–1, 481–4; Gardiner, v. 403; Gardiner mistakenly attributes Buckingham's defence to the morning of 8 August, while Russell telescopes events in such a way as to destroy their sequence by effecting an immediate transition from Monday to Wednesday. Tuesday, 9 August, a day that witnessed the Commons' reflective deliberation on the Duke's speech, is totally omitted. Gardiner, v. 418; *Debates 1625*, p. 142; Russell, pp. 248–9.

3. *Debates 1625*, pp. 78, 82–3, 86–7, 111, 130–3, 138–9, 140–1, 156; *CJ*, i. 811; *NP*, i. 75.

4. *Debates 1625*, pp. 94–102, 106–7, 140–1, 159–60; *CJ*, i. 813; Russell, p. 249.

5. *Debates 1625*, pp. 108, 110, 115; *CJ*, i. 811, 813, 814.

that it was unparliamentary and unprecedented in one session to enact several grants of subsidies', he reasoned 'by precedent against precedents: . . . that precedents were at the discretion of all times, . . . and that the precedent of one was not the practice of another . . .'. He then extolled the virtues of improvisation and evidenced the Commons' novel limiting of tonnage and poundage to one year, but his plea found few supporters in the House.¹ On the 10th Sir Edward Coke distinguished between public and private donations to the Crown. Although defending precedent he promised 'for his own part he would give £1,000 as a private man, not as a Parliament man; and that willingly, . . . and hoped those of the King's counsel would do as much.'²

To counter this prevailing sentiment, Sir Humphrey May instanced 1606, a year in which two grants of subsidy, a month apart, were incorporated within the same bill. He acknowledged fitting precedents as useful pointers to present conduct but cautioned against invoking them as barriers to necessary action. A Parliament must endow its occasions with current wisdom and not reproduce 'a mountain of wisdom that was fitted for 500 years past'. The suggestion was raised that a novel but parliamentary form of payment might avoid the danger of defiling precedent, but most members felt that customary usages should not be abandoned. Some advocated no compliance under duress, a few displayed outright recalcitrance, and at least one member, Henry Rolle, considered the king's necessities an effective bar to any precipitate royal action. He also believed that an unrivalled opportunity presented itself to demand redress of grievances in a sitting whose length could safely be dictated by the Commons.³ John Glanville mingled prescience with his decision to spurn a consideration of the king's financial needs. Deprecating the inconvenience of rash innovations he cited his earlier disapproval of the 'Bill of adjournment' to illustrate a personal commitment to time-honoured courses.

Precedents are not to be neglected; subsidies have ever come in the last place. It is a prerogative, questionless, for the King to call Parliaments when he pleaseth; our ancestors that could not take that away, set up a counter prerogative in that they had power to treat of businesses in their own order.⁴

He requested the appointment of a select committee to pen both a mollifying answer to the King and draft a larger *Protestation* prom-

1. *Ibid.*, i. 813; Eliot mistakenly attributes Mallet's speech to 8 July, when he cites him as opposing the prevailing opinion that Sir John Coke's request for a Commons' commitment to grant further supply be quietly shelved. *NP*, i. 75.

2. *Debates 1625*, p. 115; later in the year, after the assembly's dissolution, Coke's casual proffer was condemned for irresponsibly originating the Privy Seal loans with which those rated for subsidies were then being afflicted. *PRO*, SP 16/8, fo. 34.

3. *Debates 1625*, pp. 108-9, 110-14; *CJ*, i. 814.

4. *Debates 1625*, p. 114.

ising a conditional satisfaction of royal needs at some future date. It was a formula that possibly testified to his more realistic appreciation of the assembly's endangered position.¹

There was now general agreement that precedents, the emblems of parliamentary privilege, must be defended. On the 10th Sir Francis Nethersole reported a broad measure of support for the plea that 'it was against all precedent to give either subsidies upon subsidies in one Session, which one said was metal upon metal, argent upon argent, or subsidies in reversion . . .'. Edward Alford and John Whistler appreciated their worth. 'Precedents were the guides of all Courts, and therefore ought to be kept inviolably.'² Rather than break them members were prepared to defy Charles and consciously sacrifice a Parliament. By 11 August rumours were rife of the assembly's impending demise. Sir Francis Seymour named Buckingham as the primary cause of England's recent misfortunes and the following day Christopher Sherland vigorously repudiated Elizabethan and Jacobean examples, cited by Crown supporters, of occasions when the Lower House was prepared to vote separate grants of supply in one session.³ He would always follow, but never idolize, precedents, for they were 'the life of the parliaments, and therefore should be constant and certain; but those that speak most against them have most magnified them, for when they deserted reasons, how have they strained precedents to give some strength to their argument, as well that of the 29^o Elizabeth as of 3^o James, and yet neither of them near match this case.' In 1606 'two subsidies propounded and agreed to be given, and then, upon some reasons given for his Majesty's great use, they were then made up three; but all passed entirely together in one act. And have our predecessors left us free, and shall not we leave our successors free? God forbid.'⁴

Precedent had worked its weal in this Parliament. It now only remained for members to embellish their imminent despatch with promises of future collaboration. Glanville's *Protestation*, deliberately fashioned as a parting address to the King, pledged members, at some later date, to 'discover and reform the abuses and grievances of the Realm and State; and . . . to afford all necessary supply to his Majesty, upon his present and all other his just occasions and designs . . .'. Whoever aspersed these claims to allegiance were 'slanderers of the people's affections, enemies of the Commonwealth'.⁵ Last-ditch attempts to resurrect supply were condemned by Sir Thomas Wentworth, who disclaimed compliance as 'being under the rod, we could not with credit or safety yield . . .'.

1. *Ibid.*, 115.

2. Russell, p. 251; *Debates 1625*, pp. 118, 121, 148-9.

3. *Debates 1625*, 146, 160.

4. *Ibid.*, 148-9.

5. *Ibid.*, 125-6.

With its usefulness destroyed Charles formally dissolved his first Parliament on 12 August and sought by other means to finance war against Spain.¹

* * * * *

The most recent assessment of royal policy, before and after the convening of this assembly, seems intent on absolving Charles and Buckingham from much of the blame that historians have customarily placed on their actions. Professor Russell stresses merely the fortuitous nature of the difficulties facing Charles, as Prince and King, during 1624–5. Successive prorogations bred fears and rumour, a quickening disapprobation of his methods and motives in retaining the imminent prospect of a meeting while simultaneously appearing to lessen its likelihood. Nevertheless, despite these procrastinations, the King was not to blame.

The delay was not the fault of Charles, who was eager to begin the meeting [of Parliament] at the earliest possible opportunity. The delay was the result of the French marriage treaty begun in 1624 and not yet fully concluded when James died, in March 1625.

If the new King relaxed the recusancy laws, he and Buckingham ‘did not enter into this situation voluntarily: they were forced into it by the French’. A sizeable part of Henrietta Maria’s dowry would be forfeit if he did not initiate, or later abandoned, a policy that flouted members’ deepest convictions and most cherished prejudices.²

Can this view be sustained? Did not Charles and Buckingham commit the Crown to a politically damaging policy of religious toleration, and seemingly negotiate with France in ignorance of the domestic problems with which Richelieu had to contend? Even James, in 1624, identified Stuart fortunes, at home and abroad, with a French marriage. They noted but consistently failed to appreciate the threat posed to France’s fragile unity by her factious aristocracy, Catholic and Huguenot. These internecine divisions plagued the Cardinal and offset his efforts to consolidate a newly acquired pre-eminence, transform its insecurity into a lasting preponderance and thereby create the durable instruments of a new political dispensation. However Richelieu’s precarious position could only be strengthened by an Anglo-French marriage alliance, whose religious stipulations sought to free English recusants from the unsettling rigours of legal persecution. The Prince and the Duke might also have realized from the outset that dynastic considerations alone would impel France to accept nothing less than the concessions granted to Spain in 1623. Yet, gulled by their own unwarranted presumptions, Charles and Buckingham repeated an ear-

1. *Ibid.*, 150.

2. Russell, pp. 204, 208–9, 210, 215–16.

lier mistake in Madrid and sought two treaties, of marriage and military assistance, where only one was intended. They then carped at a lack of reciprocation when pressed to implement religious concessions, with a Parliament pending, and allowed a hope of French aid to involve them in a fatuous enterprise of lending English ships to Louis XIII for the purpose of suppressing the Huguenots of La Rochelle. Perhaps the Duke's constantly fermenting but immature diplomacy led him to believe that by assisting the Bourbon monarchy to subjugate its rebellious subjects he would enable France to participate fully in his military schemes.¹

Charles managed his first Parliament with the same aplomb that he brought to its preparation. The Spanish and French marriage negotiations sowed the dragon's teeth of expectancy and resentment among his Catholic and Protestant subjects. Further evidence that the new King's doctrinal allegiance and clerical bias might not be that of his father heightened current forebodings that religion and the nation's fortunes, a reciprocally provident partnership, were in grave danger. If members spent most of their time debating religious and financial matters, between 21 June and 11 July, they merely evinced a deep concern to rectify the nefarious results of royal policy, with which Charles, as Prince and King, was not only clearly identified, but for which he and Buckingham must share the greater responsibility. Charles largely created, he did not inherit, his major problems and it would need a premeditated exercise in exoneration to absolve him from the charge of producing a religious climate of intense mistrust, before and after his accession. A fortuitous outbreak of plague simply narrowed the margins of expediency around his conflicting priorities of convening a co-operative Parliament, completing the match, and enforcing toleration. It added fresh twists to a tangled web of incompatible policy objectives. A capital error was for Charles to assume from the start that this Parliament was committed simply to enforcing its predecessor's decisions. Consequently he explained too little and conceded too much in his striving for realistic levels of supply.² Accepting at face value the Commons' fiction of two subsidies granted in love and affection, he yielded to members a setting of the manner and time of their recess. Failing to appreciate the force

1. Gardiner, v. 217-18, 250-1, 258-9, 269-70; T. Cogswell, 'Foreign Policy and Parliament: the case of La Rochelle, 1625-1626', *ante*, cii (1984), 255, 260; Buckingham's most recent biographer infers royal ignorance of French domestic politics before the Duke's visit to Paris in May and June 1625. Only after this event were the favourite's future policies 'based on a sensitive appreciation of the complexities of the power struggles within France'. Lockyer, p. 239.

2. Even the presentation of a full account of recent royal expenditure to the Lower House on 1 July, and Sir John Coke's explanatory statement a week later, were characteristically mistimed to follow, and not precede, members' voting of supply. Russell, pp. 217-18, 223; *Debates 1625*, pp. 56-9, 153.

of parliamentary convention in July and August, he repeatedly sought further subsidies and angered the Commons by implementing a short adjournment when a lengthy intermission was universally presumed. At Oxford the King mortgaged his political future in return for supply by pledging his adherence to a prospectus of later meetings, a promise that he might not want, nor be able, to keep. In both meetings a dislike of burdensome procedural conventions led Charles into making mistakes that helped to promote the efforts of those who viewed with some aversion England's costly involvement in any form of European war.

A seeming neglect of the political connotations of procedural forms and innovations impairs much recent work which seeks critically to evaluate the intractable nature of Charles's relations with his Commons in 1625. Several contributors to *Faction and Parliament: Essays on Early Stuart History*, edited by Dr Kevin Sharpe, have characterized Parliament's length as comprising two sessions. The relevant chapter of Professor Russell's *Parliaments and English Politics 1621–1629*, analyses the assembly within sub-headings entitled *The London Session* and *The Oxford Session*.¹ However it is here maintained that two meetings divided in time and location by an adjournment, form only one session.

On 10 July Lord Keeper Williams argued unsuccessfully against Parliament's early reassembly at Oxford. At least the Bishop appreciated, and thus sought to anticipate, members' likely procedural objection to requests for further supply. He alluded forcefully to the parliamentary convention of the Commons not making successive grants in the one session, and he reminded Charles and the Duke that any adjourned meeting, held at Oxford or elsewhere, would merely constitute part of the same session. His contacts in the Lower House led him to believe that an attack would be made on the favourite at Oxford. Williams therefore considered it an act of folly, first to disappoint the Commons in their hopes of a long recess, and then to precipitate a confrontation that might lead only to Parliament's premature dissolution.² The Commons had already refused to consider Charles's request for a second grant of supply on 8 July. At Oxford members invoked precedent, and cited the gift of two subsidies on 30 June, as a procedural bar to any further sessional supply. Nevertheless some outside observers were perplexed by the coincidence of statutes and a parliamentary recess on 11 July. Sir Simonds D'Ewes, a stickler for convention, believed that a session had occurred. He reasoned that 'there were eight bills passed . . . , and therefore it was doubtless a prorogation of the Parliament, and not an adjournment; although some of the members

1. Russell, pp. 219, 238; J. N. Ball and K. Sharpe, in *Faction and Parliament*, pp. 177, 178, 228–9.

2. Hackett, *Scrinia Reserata*, ii. 13–14.

of the Lower House themselves styled it, as did also the letters I received from London, by the latter appellation.’¹ Sir John Corbet, member for Yarmouth, was one of those who clarified for his friends in mid-July the puzzling relationship of current legislation to a recess. Notwithstanding appearances he affirmed that ‘this meeting was no session, and that an act passed to that purpose’.²

Professor Russell’s assessment, resting on the assumption that there were two separate sessions at Westminster and at Oxford, incorporates citations from members’ speeches that betray an alarming discrepancy between their beliefs and his. Sir Simon Weston, on 10 August, alluded to a means of avoiding ‘the precedent of two grants in one session if, instead of making a new grant, they called back their previous grant, and made an addition to it.’³ The same day produced a speech by Sir Thomas Wentworth, in which he advised caution when propounding supply:

That we . . . should humbly declare unto his Majesty that this demand, being without all precedent, may be dangerous in the example . . . and therefore humbly to beseech him . . . to take in good part our declining an absolute answer till another session, that so we may (this session ended before Christmas), be enlightened by the beams of his grace in a free and princely pardon, as also to carry some good bills down with us to his people.⁴

Professor Russell misinterprets this reference by mistaking the sessional context of the speech, even though Wentworth clarifies his meaning. Sir Thomas did not, nor could he, affirm that ‘part of the subsidies they had voted in the first session were still uncollected’.⁵ For him these debates in August were being conducted in a session as yet incomplete and one that, he hoped, by another adjournment to a later date, would allow time before Christmas for useful bills and a pardon to be appended to the meagre enactments of 11 July.⁶

Important legislation was processed by the Commons and Lords

1. James O. Halliwell (ed.), *The Autobiography and Correspondence of Sir Simonds D'Ewes, Bart., during the reigns of James I and Charles I* (London, 1845), i. 275.

2. *Court and Times of Charles I*, i. 41–2; it would appear that accurate designations are urgently required when the compilers of a *Handbook of British Chronology* place the two meetings of 1621 under the heading ‘Dates of sessions of Commons’. A similarly incorrect specification for 1625 is compounded by a marginal note stating that Parliament was ‘adjourned to Oxford on 1 Aug’. Powicke and Fryde, p. 537.

3. Russell, p. 249; Gardiner, in arguing for Sir Robert Phelps’s pre-eminence throughout this assembly, clearly appreciated its mono-sessional character. Gardiner, v. 373, 432.

4. Cooper, *Wentworth Papers*, pp. 236–9.

5. Russell, p. 258.

6. Charles’s request for supply, on the 10th, was framed with no clear indication of the consequences that would follow a Commons’ refusal. In this event ‘his Majesty will take more care of your safety than yourselves . . . and he will do all as well as he may in such an extremity, wherein he may so much suffer’. Wentworth professed to believe that this form of words presaged a second adjournment to the autumn. *Debates 1625*, pp. 106, 113.

during the one session of this Parliament. An adjournment in July ensured that unfinished bills were held *in statu quo nunc* until they could be reconsidered at Oxford. Two such items, for freedom of fishing and to prevent recusants evading forfeiture of property by establishing uses, are mentioned by Professor Russell.¹ Unfortunately his adoption of inaccurate designations to describe the assembly is incompatible with the consideration of these bills in both July and August, for he ignores members' concern to invest their political objectives with procedural safeguards. Sessions possess singular and specific characteristics. Replete with these attributes they can correctly be so defined in the knowledge that such descriptions fit the particular context of parliamentary meetings. However when differing forms and arrangements are deliberately chosen by the Crown and both Houses to interrupt but not end their proceedings it is vitally important that a great deal of circumspection be used in delineating accurately these methods and rightly appraising their political repercussions. Parliamentary terms are not convenient forms of historical shorthand to be casually and indifferently applied whenever expediency dictates their use. Nor are they to be treated as mere terminological distinctions, an exercise in *ex parte* semantics. They endow a Parliament's course and development with correct meanings and often represent an accurate gauge of its members' acts and intentions. The assembly of 1625, a forum of customary usages and procedural innovations, should stand as a permanent reminder of the pitfalls awaiting those who examine its constituent elements.

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1. Russell, pp. 234, 239.